

Neeraj v. State of U.P. — recovery citation not quashed; Clause 6.14 installments

High Court of Judicature at Allahabad · Division Bench · 12 April 2018 · WRIT - C No. 13294 of 2018 · **Recovery citation not quashed; Executive Engineer directed to consider Clause 6.14 installments.**

HEADNOTE

Where a consumer admits electricity arrears and only seeks deposit in easy installments, the High Court will not quash the recovery citation. Relief, if any, lies under Clause 6.14 of the Electricity Supply Code, 2005. The Executive Engineer is to consider the installment request and pass an appropriate order extending the maximum relief admissible and permissible; recovery proceedings abide that order.

FACTUAL SUMMARY

The petitioner, Neeraj, held an electricity connection and admitted default in payment of electricity dues. Recovery proceedings had been initiated against him. He did not dispute the liability; in paragraph 12 of the writ petition he stated that he was ready and willing to deposit the outstanding amount in easy installments, and he sought quashing of the recovery citation. Counsel for the respondents invited attention to Clause 6.14 of the Electricity Supply Code, 2005, which allows an installment facility, without waiver of surcharge, for consumers in financial distress.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for admitted arrears

HOLDING

Admission of electricity arrears and a prayer only for easy installments is no ground to quash a recovery citation. On the consumer approaching the Executive Engineer with that request, the Engineer shall consider the application under Clause 6.14 (installments only for consumers in financial distress; no surcharge waiver; grant restricted by rank, with the first installment not less than 40% of the total) and pass an appropriate order extending the maximum relief admissible and permissible; recovery proceedings shall abide by that order. ¶ 3-5

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress Clause 6.14, not a writ quashing recovery, is the route when arrears are admitted and only easy installments are sought; the Executive Engineer applies the financial-distress, no-waiver, and rank/quantum limits. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS IN FINANCIAL DISTRESS AND WHAT INSTALLMENT RELIEF CLAUSE 6.14 ACTUALLY PERMITTED

Left to the Executive Engineer to extend the maximum relief admissible and permissible on the petitioner's request. ¶ 5